TABLE OF CONTENTS
Part 9: Open Space Zones

PURPOSE ..... 9.1 ~ 1

9.1 GENERAL PROVISIONS FOR OPEN SPACE ZONES ..... 9.1 ~ 1 to 2
9.1.1 Accessory Uses in OS1 and OS2 Zones ..... 9.1 ~ 1
9.1.2 Accessory Uses in an OS3 Zone ..... 9.1 ~ 1

9.2 OS1 TO OS3 ZONES
(CITY PARK, COMMUNITY PARK AND CEMETERY) ..... 9.2.1 ~ 1 to 9.2.4 ~ 2
9.2.1 OS1 to OS3 Permitted Uses and Zone Regulations ..... 9.2.1 ~ 1
9.2.2 OS1 Exception Zones ..... 9.2.2 ~ 1
9.2.3 OS2 Exception Zones ..... 9.2.3 ~ 1
9.2.4 OS3 Exception Zones ..... 9.2.4 ~ 1

PURPOSE

The purpose of this Part is to provide a number of Open Space Zones, that allow for a range of active and passive recreational opportunities, and cemeteries, in appropriate locations throughout the City.[1]

9.1 GENERAL PROVISIONS FOR OPEN SPACE ZONES

In addition to the zone provisions contained in Parts 1 to 3 of this By-law, the following General Provisions for Open Space Zones shall also apply:

9.1.1 Accessory Uses in OS1 and OS2 Zones

9.1.1.1 **Parking areas** may be constructed of a permeable type of material.

9.1.1.2 **Accessory uses** in OS1 and OS2 zones shall include, but not be limited to, washroom/changeroom facility, shade structure, maintenance/storage **building** or **structure** or an **office** for a **permitted use**, and shall be permitted accessory to an **active** or **passive recreational use**. *(0179-2018)*

9.1.2 Accessory Uses in an OS3 Zone

An **office** and a maintenance/storage **building** or **structure** for a **cemetery** shall be permitted accessory to a **cemetery**.

[1] The purpose statement is for clarification purposes and does not form part of this By-law.

9.2 OS1 TO OS3 ZONES (OPEN SPACE)

9.2.1 OS1 to OS3 Permitted Uses and Zone Regulations

All **buildings** and **structures** shall comply with the provisions contained in Parts 1 to 3 and Section 9.1 of this By-law, and the **uses** and regulations specified within the applicable zone column contained in Table 9.2.1 - OS1 to OS3 Permitted Uses and Zone Regulations.

Table 9.2.1 - OS1 to OS3 Permitted Uses and Zone Regulations
(0379-2009), (0018-2021)

Column	**A**	**B**	**C**	**D**
Line 1.0	**ZONES**	**OS1** Open Space - Community Park	**OS2** Open Space - City Park	**OS3** Open Space - Cemetery
PERMITTED USES				
2.0	OPEN SPACE			
2.1	**Passive Recreational Use**	✓	✓	
2.2	**Active Recreational Use**	✓	✓	
2.3	**Stormwater Management** Facility	✓	✓	
2.4	**Cemetery**			✓
ZONE REGULATIONS				
3.0	MINIMUM **LOT FRONTAGE**	n/a	n/a	15.0 m
4.0	MINIMUM SETBACK OF A **BUILDING** OR **STRUCTURE** TO A **LOT LINE**	4.5 m (1)	4.5 m (1)	7.5 m, not including a tombstone (1)
5.0	MINIMUM SETBACK OF A **BUILDING** OR **STRUCTURE** TO **LOT LINE** ABUTTING A RESIDENTIAL ZONE	6.0 m (1)	6.0 m (1)	15.0 m, not including a tombstone (1)
6.0	MAXIMUM **BUILDING HEIGHT**	n/a	n/a	10.7 m
7.0	MINIMUM **LANDSCAPED BUFFER** ABUTTING ALL **LOT LINES**	n/a	4.5 m (1)(3)	4.5 m (3)

NOTES: (1) See also Subsection 2.1.17 of this By-law.
(2) *deleted by 0018-2021.*
(3) See also Subsection 2.1.25 of this By-law.

9.2.2 OS1 Exception Zones

Refer to Article 1.1.2.3 - Exception Zones and Exception Zone Schedules

9.2.2.1	Exception: OS1-1	Map # 52W	By-law:
In an OS1-1 zone the permitted **uses** and applicable regulations shall be as specified for an OS1 zone except that the following **uses**/regulations shall apply:			
Regulation			
9.2.2.1.1	Maximum **lot coverage**		5%

9.2.2.2	Exception: OS1-2	Map # 02	By-law: 0247-2016
In an OS1-2 zone the applicable regulations shall be as specified for an OS1 zone except that the following **uses**/regulations shall apply:			
Permitted Use			
9.2.2.2.1	Lands zoned OS1-2 shall only be used for the following: (1) Private Open Space		

9.2.3 OS2 Exception Zones

Refer to Article 1.1.2.3 - Exception Zones and Exception Zone Schedules

9.2.3.1	Exception: OS2-1	Map # 06	By-law: 0210-2015
In an OS2-1 zone the permitted **uses** and applicable regulations shall be as specified for an OS2 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
9.2.3.1.1	(1) **Golf Course** (2) **Recreational Establishment** (3) Groundskeeper Residence		

9.2.3.2	Exception: OS2-2	Map # 38W	By-law:
In an OS2-2 zone the permitted **uses** and applicable regulations shall be as specified for an OS2 zone except that the following **uses**/regulations shall apply:			
Regulation			
9.2.3.2.1	Minimum setback of all **buildings** and **structures** to all lands zoned G1		15.0 m

9.2.3.3	Exception: OS2-3	Map # 06	By-law:
In an OS2-3 zone the permitted **uses** and applicable regulations shall be as specified for an OS2 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
9.2.3.3.1	The following additional **uses** shall be permitted within the **building** legally **existing** on the date of passing of this By-law: (1) **Office** (2) **Banquet Hall/Conference Centre/Convention Centre** (3) Academy for the Performing Arts (4) Art Gallery or Studio (5) Commercial school that may include a business school, driving school, dance school, music school, arts school, crafts school or a martial arts school, but shall not include a trade school or a **private school**		
Regulation			
9.2.3.3.2	The provisions contained in Articles 2.1.9.7 and 2.1.9.8 of this By-law shall not apply		

9.2.3.4	Exception: OS2-4	Map # 08	By-law:
In an OS2-4 zone the permitted **uses** and applicable regulations shall be as specified for an OS2 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
9.2.3.4.1	(1) **Restaurant** legally **existing** on the date of passing of this By-law		

9.2.3.5	Exception: OS2-5	Map # 05, 16, 17, 36W, 38E	By-law:

In an OS2-5 zone the permitted **uses** and applicable regulations shall be as specified for an OS2 zone except that the following **uses**/regulations shall apply:

Additional Permitted Uses

9.2.3.5.1
(1) **Golf Course**
(2) **Recreational Establishment**

9.2.3.6	Exception: OS2-6	Map # 36E	By-law: 0212-2015, 0085-2018, 0111-2019/ LPAT Order 2021 March 09

In an OS2-6 zone the permitted **uses** and applicable regulations shall be as specified for an OS2 zone except that the following **uses**/regulations shall apply:

Additional Permitted Uses

9.2.3.6.1
(1) Spectator Arena
(2) Community Arena
(3) Outdoor Stadium
(4) Sports Complex
(5) Health and fitness centre, provided such **use** is accessory to a sports complex
(6) Sports medicine clinic, provided such **use** is accessory to a sports complex
(7) Pitch and Putt Facility
(8) Miniature Golf Facility
(9) Driving Range
(10) Archery Range
(11) **Banquet Hall/Convention Centre/Conference Centre**
(12) **Restaurant**
(13) **Overnight Accommodation**
(14) **Office**
(15) **Medical Office**
(16) Accessory uses to a spectator arena, community arena, outdoor stadium, sports complex or **overnight accommodation**
(17) Outdoor markets and other outdoor sales
(18) **Fairground**
(19) **Entertainment Establishment**

Regulations

9.2.3.6.2	The provisions of Lines 4.0 and 5.0 contained in Table 2.1.9.7 of this By-law shall not apply	
9.2.3.6.3	For the purposes of this By-law, all lands zoned OS2-6 shall be considered one **lot**	
9.2.3.6.4	Maximum **gross floor area - non-residential** for all **restaurants**	3 850 m^2
9.2.3.6.5	Maximum **gross floor area - non-residential** used for accessory uses	4200 m^2
9.2.3.6.6	Maximum number of **overnight accommodation** units	300
9.2.3.6.7	Required parking may be located on lands zoned E2-37, PB1-3 and PB1-4	
9.2.3.6.8	"Accessory Uses" means a **retail store**, **service establishment** and an event ticket office	

9.2.3.7	Exception: OS2-7	Map # 31	By-law: 0111-2019/LPAT Order 2021 March 09
In an OS2-7 zone the permitted **uses** and applicable regulations shall be as specified for an OS2 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
9.2.3.7.1	(1) Garden Park (2) **Office** (3) **Commercial School** (4) **Banquet Hall/Convention Centre/Conference Centre** (5) Training and Development Centre (6 Gift Shop (7) **Restaurant** (8) Conservatory (9) Greenhouse including accessory sales		
Regulations			
9.2.3.7.2	Maximum **gross floor area - non-residential** of all **buildings** and **structures**		6 000 m^2
9.2.3.7.3	Minimum setback to the Highway 403 right-of-way		7.5 m
9.2.3.7.4	Minimum setback to a **lot line** abutting a railway right-of-way		7.5 m
9.2.3.7.5	Minimum setback to Burnhamthorpe Road West		9.5 m
9.2.3.7.6	For the purpose of this Exception, a **commercial school** shall include a music school, a dance school, a martial arts school and tutoring		
9.2.3.7.7	"Garden Park" means a facility for the display and demonstration of gardens		

9.2.3.8	Exception: OS2-8	Map # 08	By-law:
In an OS2-8 zone the permitted **uses** and applicable regulations shall be as specified for an OS2 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
9.2.3.8.1	(1) Private Club		

9.2.3.9	Exception: OS2-9	Map # 08	By-law: 0271-2015, 0111-2019/LPAT Order 2021 March 09
In an OS2-9 zone the permitted **uses** and applicable regulations shall be as specified for an OS2 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
9.2.3.9.1	(1) **Office** (2) **Medical Office** (3) **Retail Store** (4) **Commercial School** (5) **Banquet Hall/Convention Centre/Conference Centre** (6) **Restaurant** (7) **Take-out Restaurant** (8) Academy for the Performing Arts		
Regulation			
9.2.3.9.2	For the purpose of this Exception, a **commercial school** shall include a music school, a dance school, a martial arts school and tutoring		

9.2.3.10	Exception: OS2-10	Map # 07	By-law: 0179-2017
In an OS2-10 zone the permitted **uses** and applicable regulations shall be as specified for an OS2 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
9.2.3.10.1	(1) **Office** (2) Academy for the Performing Arts (3) **Banquet Hall/Conference Centre/Convention Centre**		

9.2.3.11	Exception: OS2-11	Map # 04	By-law: 0396-2009/ OMB Order 2010 May 17
In an OS2-11 zone the permitted **uses** and applicable regulations shall be as specified for an OS2 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
9.2.3.11.1	(1) Garden Park (2) **Office** (3) Commercial School (4) **Banquet Hall/Conference Centre/Convention Centre** (5) Training and Development Centre (6) **Restaurant** (7) **Take-out Restaurant** (8) Gift Shop (9) Conservatory (10) Greenhouse including accessory sales		
Regulations			
9.2.3.11.2	Maximum **gross floor area - non-residential** used for gift shops		212 m^2
9.2.3.11.3	Minimum setback to the G1-14 zone for an addition to the **existing building**, over an **existing** foundation abutting the G1-14 zone		0.0 m
9.2.3.11.4	"Commercial School" means a business school, dance school, music school, arts school or crafts school.		

9.2.3.12	Exception: OS2-12	Map # 01	By-law: 0180-2017
In an OS2-12 zone the permitted **uses** and applicable regulations shall be as specified for an OS2 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
9.2.3.12.1	(1) **Office** (2) **Banquet Hall/Conference Centre/Convention Centre** (3) Academy for the Performing Arts (4) Art Gallery or Studio (5) **Commercial School** (6) **Retail Store** (7) **Recreational Establishment** (8) **Take-out Restaurant** (9) **Restaurant**		

9.2.3.13	Exception: OS2-13	Map # 08	By-law: LPAT Order 2019 November 15
In an OS2-13 zone the permitted **uses** and applicable regulations shall be as specified for an OS2 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
9.2.3.13.1	(1)	Outdoor Market	

9.2.3.14	Exception: OS2-14	Map # 08	By-law: LPAT Order 2019 November 15
In an OS2-14 zone the permitted **uses** and applicable regulations shall be as specified for an OS2 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
9.2.3.14.1	(1)	Outdoor Market	
	(2)	**Take-out Restaurant**	
	(3)	Outdoor patio accessory to a **take-out restaurant**	

9.2.3.15	Exception: OS2-15	Map # 40W	By-law: 0151-2020
In an OS2-15 zone the permitted **uses** and applicable regulations shall be as specified for an OS2 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
9.2.3.15.1	(1)	Outdoor Market	

9.2.3.16	Exception: OS2-16	Map # 45E	By-law: 0151-2020
In an OS2-16 zone the permitted **uses** and applicable regulations shall be as specified for an OS2 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
9.2.3.16.1	(1)	Greenhouse including accessory sales	
	(2)	Outdoor Market	
	(3)	Training and Development Centre	

9.2.3.17	Exception: OS2-17	Map # 45E	By-law: 0151-2020
In an OS2-17 zone the permitted **uses** and applicable regulations shall be as specified for an OS2 zone:			
Holding Provision			
	The holding symbol H is to be removed from the whole or any part of the lands zoned H-OS2-17 by further amendment to Map 45E of Schedule B contained in Part 13 of this By-law, as amended, upon the satisfaction of the following requirement:		
	(1)	delivery of a slope stability analysis and erosion assessment in a form satisfactory to the City of Mississauga and Credit Valley Conservation.	

Refer to Minister Zoning Order (MZO) O. Reg. 91/23 2023 May 12			
9.2.3.18	Exception: OS2-18	Map # 01	By-law: 0119-2022
In an OS2-18 zone the permitted **uses** and applicable regulations shall be as specified for an OS2 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
9.2.3.18.1	(1) **Restaurant** (2) **Take-out Restaurant** (3) **Retail Store** (4) Outdoor Market (5) Community Cultural Centre (6) Outdoor patio accessory to a **restaurant** or **take-out restaurant** (7) Tent and/or Stage (8) **Entertainment Establishment** (9) **Banquet Hall/Conference Centre/Convention Centre**		
Regulations			
9.2.3.18.2	The regulations of Lines 4.0, 5.0 and 7.0 contained in Table 9.2.1 of this By-law shall not apply		
9.2.3.18.3	Parking shall not be required for any **use** permitted in the OS2-18 zone		
9.2.3.18.4	"Community Cultural Centre" means a **building**, **structure** or part thereof, for the provision of community activities, such as, but not limited to, recreation, arts, crafts, museums, social and charitable activities		
Holding Provision			
	The holding symbol H is to be removed from the whole or any part of the lands zoned H-OS2-18 by further amendment to Map 01 of Schedule B contained in Part 13 of this By-law, as amended, upon satisfaction of the following requirement: (1) the provisions contained in Article 2.1.33.7 of this By-law as they relate to lands zoned H-OS2-18 and subject to holding provisions H1, H2 and H3.		

Refer to Minister Zoning Order (MZO) O. Reg. 91/23 2023 May 12			
9.2.3.19	Exception: OS2-19	Map # 01	By-law: 0119-2022
In an OS2-19 zone the permitted **uses** and applicable regulations shall be as specified for an OS2 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
9.2.3.19.1	(1) **Take-out Restaurant** (2) Outdoor patio associated with a **take-out restaurant** (3) **Retail Store** (4) Outdoor Market (5) Tent and/or Stage (6) Municipal Contractor's Yard (7) Community Cultural Centre		
Regulations			
9.2.3.19.2	The regulations of Lines 4.0, 5.0 and 7.0 contained in Table 9.2.1 of this By-law shall not apply		
9.2.3.19.3	Parking shall not be required for any **use** permitted in the OS2-19 zone		

Exception OS2-19 continued next page

Refer to Minister Zoning Order (MZO) O. Reg. 91/23 2023 May 12			
9.2.3.19	Exception: OS2-19	Map # 01	By-law: 0119-2022
Exception OS2-19 continued from previous page			
9.2.3.19.4	"Community Cultural Centre" means a **building**, **structure** or part thereof, for the provision of community activities, such as, but not limited to, recreation, arts, crafts, museums, social and charitable activities		
Holding Provision			
	The holding symbol H is to be removed from the whole or any part of the lands zoned H-OS2-19 by further amendment to Map 01 of Schedule B contained in Part 13 of this By-law, as amended, upon satisfaction of the following requirement: (1) the provisions contained in Article 2.1.33.7 of this By-law as they relate to lands zoned H-OS2-19 and subject to holding provisions H1, H2 and H3.		

9.2.3.20	Exception: OS2-20	Map # 57	By-law: 0019-2022
In an OS2-20 zone the permitted **uses** and applicable regulations shall be as specified for an OS2 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
9.2.3.20.1	(1) **Recreational Establishment**		

9.2.4 OS3 Exception Zones

Refer to Article 1.1.2.3 - Exception Zones and Exception Zone Schedules

9.2.4.1	Exception: OS3-1	Map # 10, 38W, 46W	By-law:
In an OS3-1 zone the permitted **uses** and applicable regulations shall be as specified for an OS3 zone except that the following **uses**/regulations shall apply:			
Uses Not Permitted			
9.2.4.1.1	(1) **Crematorium** (2) **Mausoleum**		

9.2.4.2	Exception: OS3-2	Map # 36W	By-law:
In an OS3-2 zone the permitted **uses** and applicable regulations shall be as specified for an OS3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
9.2.4.2.1	(1) **Place of Religious Assembly**		
Uses Not Permitted			
9.2.4.2.2	(1) **Crematorium** (2) **Mausoleum**		

9.2.4.3	Exception: OS3-3	Map # 50E	By-law:
In an OS3-3 zone the permitted **uses** and applicable regulations shall be as specified for an OS3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
9.2.4.3.1	(1) **Passive Recreational Use**		

9.2.4.4	Exception: OS3-4	Map # 20, 35E, 38W, 41W, 52E, 56	By-law:
In an OS3-4 zone the permitted **uses** and applicable regulations shall be as specified for an OS3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
9.2.4.4.1	(1) **Passive Recreational Use**		
Uses Not Permitted			
9.2.4.4.2	(1) **Crematorium** (2) **Mausoleum**		

9.2.4.5	Exception: OS3-5	Map # 38W	By-law: 0087-2014
In an OS3-5 zone the permitted **uses** and applicable regulations shall be as specified for an OS3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
9.2.4.5.1	(1) **Place of Religious Assembly** (2) **Passive Recreational Use**		
Uses Not Permitted			
9.2.4.5.2	(1) **Crematorium** (2) **Mausoleum**		

9.2.4.6	Exception: OS3-6	Map # 20, 24	By-law: 0222-2015, 0151-2020
In an OS3-6 zone the permitted **uses** and applicable regulations shall be as specified for an OS3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
9.2.4.6.1	(1) **Place of Religious Assembly**		

9.2.4.7	Exception: OS3-7	Map # 10	By-law:
In an OS3-7 zone the permitted **uses** and applicable regulations shall be as specified for an OS3 zone except that the following **uses**/regulations shall apply:			
Uses Not Permitted			
9.2.4.7.1	(1) **Crematorium** (2) **Mausoleum** (3) **Columbarium**		